
Appeal Decision

Site visit made on 16 June 2026 by J Reed MPlan MRTPI

Decision by A M Nilsson BA (Hons) DipTP MRTPI

an Inspector appointed by the Secretary of State

Decision date: 8 September 2026

Appeal Ref: 6006054

393 Burnley Road, Cliviger B10 4SU

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr A Higson against the decision of Burnley Borough Council.
 - The application Ref is FUL/2026/0003.
 - The development proposed is demolition of a building used for dog grooming and its replacement by a detached dwelling.
-

Decision

1. The appeal is dismissed.

Appeal Procedure

2. The site visit was undertaken by a representative of the Inspector whose recommendation is set out below and to which the Inspector has had regard before deciding the appeal.

Preliminary Matters

3. On 17 August 2026 the Government published a revised National Planning Policy Framework (the Framework). It includes changes with respect to heritage matters with specific regard to the degrees of harm. That said, the actions of finding harm to a designated heritage asset is not materially different from the previous iteration of the Framework. I am therefore satisfied that I can proceed without further consultation with the main parties since, with the above in mind, their respective cases would not be prejudiced.
4. Section 66(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990 (the Act) requires that special regard shall be had to the desirability of preserving a listed building or its setting or any features of special architectural or historic interest which it possesses. The Framework sets out that heritage assets are an irreplaceable resource and should be conserved in a manner appropriate to their significance. It further advises that substantial weight should be given to the conservation of designated assets, regardless of the level of harm. The more important the asset, the greater the weight that should be applied.

Main Issue

5. The main issue is the effect of the proposal on the character and appearance of the local area bearing in mind the special attention that should be paid to the desirability of preserving the setting of the nearby Grade II listed buildings 395 and 397 Burnley Road and the Ram Inn.

Reasons for the Recommendation

6. The appeal site is a parcel of land within the garden area of 393 Burnley Road and currently consists of a grassed area and a detached single storey building used for dog grooming. Flanking the appeal site is Bridleway BW1204117 which leads beyond the settlement to the open countryside to the south. To the north of the appeal site on the opposing side of the Bridleway are several listed buildings. Grade II listed 395 and 397 Burnley Road (Ref 1072670) are mentioned in the listing description as being a pair of mid-19th century semi-detached houses built in coursed squared sandstone with small quoins and a stone slate roof built in the symmetrical Jacobean Style. The Ram Inn, which is also Grade II listed (Ref 1072671) also lies to the north of the appeal site and the listing description mentions that the building is a 18th Century Inn with an attached house constructed in coursed sandstone rubble with quoins and stone slate roof possessing a rectangular plan. Both listings form a group and area read in unison due to their plots backing onto the open countryside to the rear. Based on my observations, and the submitted information, for the purposes of this appeal, the significance of the designated heritage assets is derived from their age, historic fabric, architectural features and their historical and functional relationships.
7. The glossary of the Framework states that the significance of a heritage asset derives not only from the asset's physical presence but also from its setting. It defines the setting of a heritage asset as the surroundings in which an asset is experienced. These are not fixed and may change over time. The Framework indicates that any harm to the significance of a heritage asset, or from development within its setting, should require clear and convincing justification. In relation to this appeal, the relationship of the buildings to each other and the land around them, including the rural and agricultural landscape, is an intrinsic part of their significance. The topography of the landscape contributes greatly to the area's character and shapes attractive views into and out of this picturesque grouping.
8. The appeal dwelling would be situated on lower ground compared to the nearby listed buildings. However, I observed on my site visit that whilst that would be the case when approaching Holmes Chapel on Bridleway BW1204117 there would be a degree of intervisibility particularly between the proposed dwelling and 395 and 397 Burnley Road. Glancing views can also be gained of the Ram Inn between the foliage. It is clear to me that the erection of a modern two storey detached dwelling would be harmful to the environment in which the listed buildings are experienced and appreciated, as a result of its complex design and siting which, as a result, would harm the significance of these listed buildings.
9. The proposed dwelling would be two storey and finished in zinc, larch plank boarding, natural stone and grey render. It would be situated deeper into the plot than the existing kennel building in a more recessed position. However, the dwelling would be significantly greater in height, scale and massing which would result in it appearing far more prominent from the bridleway in both distant and close-range views. In addition, the modern design and material choice of the dwelling would directly contrast with the traditional form and materials of the listed buildings in its backdrop.
10. I note the presence of the paraphernalia associated with the Ram Inn including garden furniture and play equipment that is seen as part of its setting. However,

these are lightweight removable structures whereas in contrast the appeal dwelling would be a permanent addition to the setting.

11. Even though the dwelling would be situated in a relatively large plot with established landscaping, the proposed scale and design of the dwelling would be wholly inappropriate and incongruous compared to the typically vernacular details of the houses nearby and their more traditional design. It would also be highly prominent in long range views from the area surrounding the village including views from Burnley Road.
12. I observed on my site visit that there are a variety of differently designed properties within Holme Chapel, and I note the appellant's argument that the appeal dwelling would be read as part of this context. However, whilst properties possess some variety; key design features are shared such as either hipped or pitched roof forms as well as the use of either traditional stone construction or white/cream render. In contrast the appeal dwelling would utilise a flat roof design as well as contemporary materials and whilst I note the presence of the differently designed 393 Burnley Road this is an anomaly as opposed to a constant. This contrast is further exacerbated by the irregular fenestration pattern at the appeal dwelling.
13. The appellant has made reference to other approvals in the surrounding area for modern detached dwellings. However, in the absence of further details pertaining to these I cannot be sure they are sufficiently similar to the scheme before me.
14. I acknowledge that the dog grooming building on site is different in its design to the buildings in the surrounding area and fails to make a positive contribution to the areas character and appearance. This, however, is mitigated by the building's single storey form which reduces its prominence and limits visibility. Furthermore, regardless of this, the presence of other inappropriate development does not justify harm to the character and appearance of the area.
15. It is suggested that the existing building does not positively contribute to the setting of the surrounding listed buildings. However, I have found that the existing building whilst not a positive contributor is limited in its visibility due to its modest height. The same could not be said for the appeal proposal given its scale and design; it would be a dominant and visually intrusive building. Therefore, the proposal would be wholly inappropriate in this sensitive historic context and would detract from the ability to appreciate and understand the significance of nearby listed buildings.
16. Policy HE6 of the Framework advises that where a development proposal would harm the significance of a designated heritage asset, the effect on the asset and its significance should be weighed against any public benefits resulting from the proposal. In undertaking this balance, I have taken account of the Planning Practice Guidance which outlines what constitutes a public benefit.
17. Policy HE6 also states that any harm to a designated heritage asset will be a matter of considerable importance and weight. The proposed dwelling would not cause physical harm to the heritage assets; however, the proposed dwelling would cause visual harm to the environment in which the listed buildings are experienced. I find the harm to be moderate in this instance but nevertheless of considerable importance and weight.
18. In terms of public benefits, the proposed development would result in the contribution of one new self-build dwelling, which would be secured as such

through a legal agreement, whose occupants would make a limited contribution to local services as well as the economy. Although I do not dispute these benefits, because the proposal would provide only one residential unit, I give them only limited weight. As such, given the great weight I must give to the conservation of designated heritage assets, the harm I have identified would not be outweighed.

19. Although I acknowledge the limited weight deriving from the public benefits of the scheme in general terms, they would not outweigh the identified harm. As such, the proposal would not comply with the Framework. In addition, there is no clear and convincing justification for the harm to the significance of the heritage assets. There would also be harm to the wider character and appearance of the surrounding area. It would therefore fail to meet the requirements of Policies SP5, NE3, HE1 and HE2 of the Burnley Local Plan (2018). These seek amongst other things for proposals affecting the setting of designated heritage assets to be assessed having regard to the desirability of sustaining and enhancing the significance of the asset and, where appropriate, securing a viable use most consistent with its conservation. All levels of harm should be avoided.

Conclusion and Recommendation

20. Although the proposed development would be within a settlement, the benefits in terms of the provision of an additional dwelling, which would be a self-build property, would be substantially outweighed by the harm to the character and appearance of the area and the significance of nearby listed buildings from development within their setting.
21. For the above reasons, and having taken all other matters raised into account, there are no material considerations that indicate the proposal should be determined otherwise than in accordance with the development plan. I therefore conclude that the appeal should be dismissed.

J Reed

APPEAL PLANNING OFFICER

Inspector's Decision

22. I have considered all the submitted evidence and my representative's report and on that basis the appeal is dismissed.

A M Nilsson

INSPECTOR